

THE CONSTITUTION (EIGHTEENTH AMENDMENT) ACT, 1966

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Constitution and Amendments

THE CONSTITUTION (EIGHTEENTH AMENDMENT) ACT, 1966

India

THE CONSTITUTION (EIGHTEENTH AMENDMENT) ACT, 1966

Act 018 of 1966

Published in Gazette of India on 16 May 1966

Commenced on 27 August 1966

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Statement of Objects and Reasons appended to the Constitution (Twentieth Amendment) Bill, 1966 which was enacted as the Constitution (Eighteenth Amendment) Act, 1966

STATEMENT OF OBJECTS AND REASONS

Article 3 of the Constitution provides for the formation of new States and alteration of areas, boundaries, or names of existing States.

Before the Constitution (Seventh Amendment) Act, 1956, was enacted, the expression "States" occurring in that article meant Part A States, Part B States and also Part C States. By the Seventh Amendment of the Constitution in 1956, the concept of "Union territories" was introduced in our Constitution but article 3 was not amended to include in terms "Union territories". It is considered proper to amend this article to make it clear that "State" in clauses (a) to (e) of that article (but not in the proviso) includes "Union territories". It is also considered proper to make it clear that power under clause (a) of article 3 includes power to form a new State or Union territory by uniting a part of a State or Union territory to another State or Union territory.

The Bill seeks to achieve the above objects.

An Act further to amend the Constitution of India.

BE it enacted by Parliament in the Seventeenth Year of the Republic of India as follows:-

1.

Short title.-

This Act may be called the Constitution (Eighteenth Amendment) Act, 1966.

2.

Amendment of article 3.-

In article 3 of the Constitution, the following Explanations shall be inserted at the end, namely:-

Explanation I.-In this article in clauses (a) to (e), "State" includes a Union territory, but in the proviso, "State" does not include a Union territory.

Explanation II.-The power conferred on Parliament by clause (a) includes the power to form a new State or Union territory by uniting a part of any State or Union territory to any other State or Union territory.

[The Constitution (Eighteenth Amendment) Act, 1966, revised Article 3 of the Constitution to give new meaning to the terms "State" and "Union territories". The modification clarified that in Article 3, the term "State" in clauses (a) to (e) must include "Union territories". However, this was not applicable in the proviso. It further explained that the power under clause (a) involves the authority of the Parliament for the formation of a new State or Union territory. This may be done by joining a part of any State or Union territory with some other State or Union territory. Article 3 of the Indian Constitution was concerned with the establishment of new States. It also provided for altering names, areas, or boundaries of existing States. Hence, it needed modification to include the concept of "Union territories" within the meaning of "State" in clauses (a) to (e), but not in the proviso. This would allow the reorganization of Union territories. Therefore, this amendment was crucial for the formation and rise of Union territories.

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